

Compliance report

Example Operator Ltd · Essential entity · as at 06/10/2026
the country has not yet adopted a transposing act — the assessment follows EU law

ITORO self-assessment tool — this document is neither an audit nor legal advice.

Summary for the board

ENTITY STATUS

Essential entity

NIS 2 Directive Article 3(1)(c)

(provider of public electronic communications networks or of publicly available electronic communications services that qualifies at least as a medium-sized enterprise)

DEGREE OF PREPAREDNESS

59%

Maturity 2.4 at target level 4

FORMAL OBLIGATIONS

8/16

3 not fulfilled, 5 in progress

Nearest statutory deadlines

- 17/10/2027 (in 376 days) — First review of the Directive by the Commission

Largest gaps

1. Cyber hygiene and training — maturity 2.0 against the target 4, priority critical
2. 7. Policies and procedures to assess the effectiveness of cybersecurity risk-management measures (Article 21(2), point (f), of Directive (EU) 2022/2555) — maturity 2.0 against the target 4, priority critical
3. 9. Cryptography (Article 21(2), point (h), of Directive (EU) 2022/2555) — maturity 2.0 against the target 4, priority critical
4. 2. Risk management policy (Article 21(2), point (a) of Directive (EU) 2022/2555) — maturity 2.2 against the target 4, priority high
5. 4. Business continuity and crisis management (Article 21(2), point (c), of Directive (EU) 2022/2555) — maturity 2.2 against the target 4, priority high

The authorities gain the power to impose financial penalties from 17/10/2024 (NIS 2 Directive Article 41(1)). From when the national authority may impose fines is determined by the act transposing the Directive — this module does not know it. Financial risk is therefore not dated here, while implementation obligations follow from national law from the day it enters into force.

Financial liability

Entity

How this ceiling arises — two separate steps

1. The minimum ceiling is set by the Directive

Two values are compared: a fixed amount in euro and a percentage of the undertaking's total worldwide annual turnover in the preceding financial year. The higher of the two is the upper limit that the Member State must provide for at a minimum. National law may raise it.

NIS 2 Directive Article 34(4 and 5)

2. The amount within the ceiling is set by the national authority

The fine must be effective, proportionate and dissuasive according to the circumstances of the individual case. The authority takes into account at least the criteria of Article 32(7): the gravity and duration of the infringement, previous infringements, damage caused, intent, remedial measures and cooperation.

NIS 2 Directive Article 34(1 and 3)

The ceiling may exceed annual turnover many times over — it is an upper limit, not an expected amount. National minimums, periodic penalties and the procedure for setting fines are determined by the law of the Member State.

The statutory ceiling of the financial penalty is **10,000,000 EUR**. The fixed amount prevails: EUR 10 million is higher than 2 % of turnover.

- Percentage variant: 480,000 EUR
- Fixed-amount variant: 10,000,000 EUR
- Statutory minimum: 0 EUR

The ceilings in Article 34(4) and (5) are minimums ("at least") — national law may provide for higher ones. Amounts in euro, without conversion into the national currency.

Grading of the fine — NIS 2 Directive Article 34(3) and Article 32(7)

When deciding whether to impose an administrative fine and its amount, due regard is given in each individual case to at least the elements listed in Article 32(7).

Criteria from Article 32(7) of the Directive:

- the gravity of the infringement and the importance of the provisions breached — the following are in any event considered serious: repeated infringements, failure to notify or remedy significant incidents, failure to remedy deficiencies contrary to binding instructions, obstruction of audits or monitoring, provision of false or grossly inaccurate information
- czas trwania naruszenia
- any relevant previous infringements by the entity
- any material or non-material damage caused, including financial loss, effects on other services and the number of users affected
- the intentional or negligent character of the infringement
- measures taken to prevent or mitigate the damage
- adherence to approved codes of conduct or certification mechanisms
- the degree of cooperation with the competent authorities

The Directive does not expressly provide for waiving a fine — whether and when this is possible is decided by national law.

- Member States may provide for periodic penalty payments to compel an entity to cease an infringement. The amount is set by national law.
- The Directive provides no separate fine for a qualified infringement — that is a construct of the national law of some Member States.

Head of the entity

Legal act	Basis	Authority	Ceiling
Directive (EU) 2022/2555	NIS 2 Directive Article 20(1)	Competent authority of the Member State	0 EUR

- The management body approves the cybersecurity risk-management measures (Article 20(1)).
- The management body oversees the implementation of those measures (Article 20(1)).
- Members of the management body follow regular training (Article 20(2)).
- In respect of an essential entity the authority may request a temporary prohibition on exercising managerial functions (Article 32(5)(b)).

The entity carries out electronic communications activity — the liability of the managing person is determined by national law

The authorities gain the power to impose financial penalties from **17/10/2024** (NIS 2 Directive Article 41(1)). From when the national authority may impose fines is determined by the act transposing the Directive — this module does not know it. Implementation obligations follow from national law from the day it enters into force.

2.4

Rozwijany

OVERALL MATURITY

59%

Target: level 4

DEGREE OF COMPLIANCE

1.6

to the target level

AVERAGE GAP

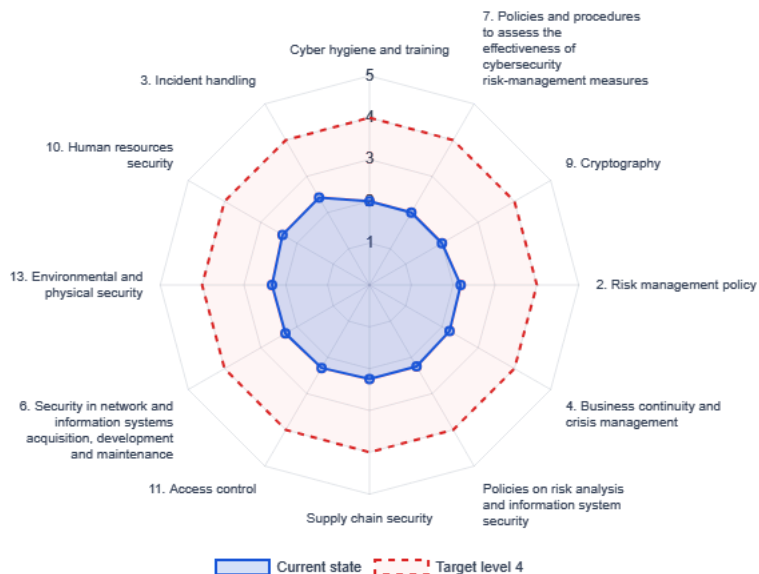
212/212

100% complete

ANSWERS

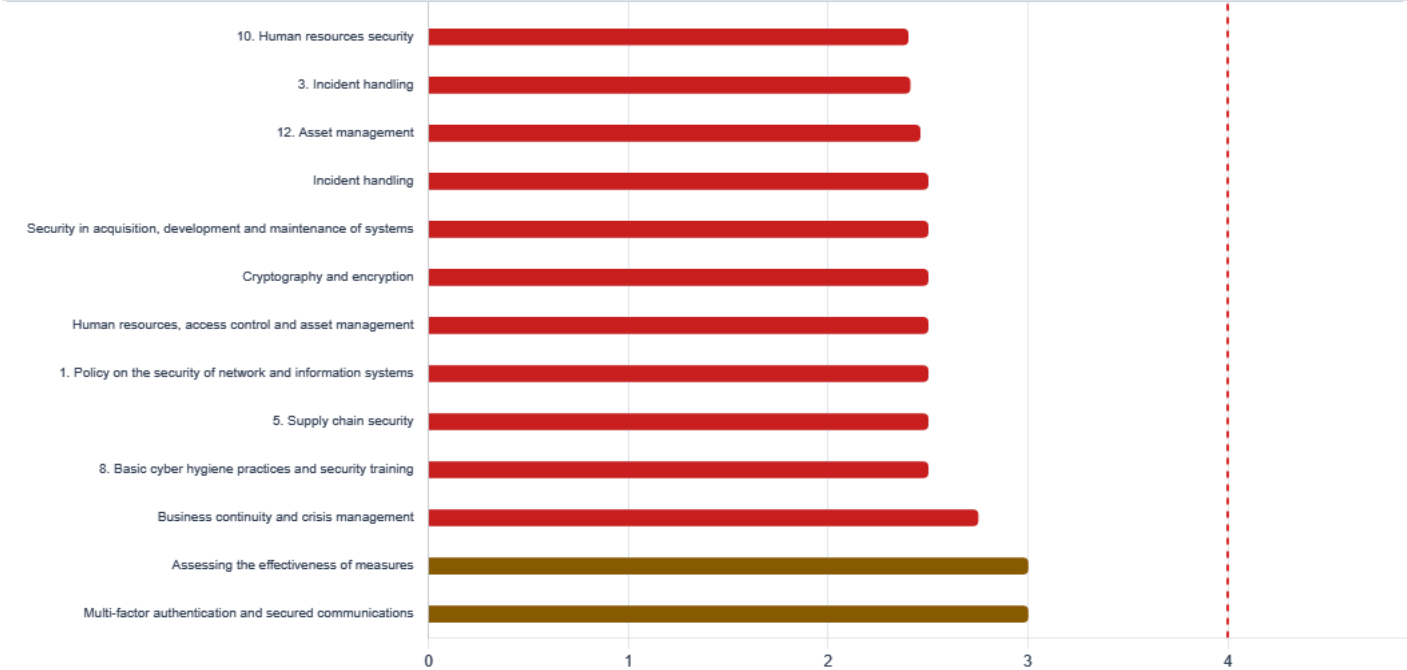
Maturity profile

12 areas with the largest gap out of 23





Completion by legal act		
Legal act	Completed	Maturity
Obligations NIS 2 Directive — formal obligations	16/16	—
NIS 2 NIS 2 Directive — Article 21	35/35	2.5
2024/2690 Regulation (EU) 2024/2690	161/161	2.3



Gap analysis						
Area		Current	Target	Gap	Priority	Completion
Cyber hygiene and training		2.0	4	2.0	Critical	3/3
NIS 2 Directive	Article 21(2)(g)					
NIS 2 Directive	Article 20(2)					
7. Policies and procedures to assess the effectiveness of cybersecurity risk-management measures (Article 21(2), point (f), of Directive (EU) 2022/2555)		2.0	4	2.0	Critical	3/3
Reg. 2024/2690	Annex, section 7					
9. Cryptography (Article 21(2), point (h), of Directive (EU) 2022/2555)		2.0	4	2.0	Critical	3/3
Reg. 2024/2690	Annex, section 9					
2. Risk management policy (Article 21(2), point (a) of Directive (EU) 2022/2555)		2.2	4	1.8	High	11/11
Reg. 2024/2690	Annex, section 2					
4. Business continuity and crisis management (Article 21(2), point (c), of Directive (EU) 2022/2555)		2.2	4	1.8	High	14/14
Reg. 2024/2690	Annex, section 4					
Policies on risk analysis and information system security		2.3	4	1.8	High	4/4
NIS 2 Directive	Article 21(2)(a)					
Supply chain security		2.3	4	1.8	High	4/4
NIS 2 Directive	Article 21(2)(d)					
NIS 2 Directive	Article 21(3)					
11. Access control (Article 21(2), points (i) and (j), of Directive (EU) 2022/2555)		2.3	4	1.7	High	21/21
Reg. 2024/2690	Annex, section 11					
6. Security in network and information systems acquisition, development and maintenance (Article 21(2), point (e), of Directive (EU) 2022/2555)		2.3	4	1.7	High	31/31
Reg. 2024/2690	Annex, section 6					
13. Environmental and physical security (Article 21(2), points (c), (e) and (i) of Directive (EU) 2022/2555)		2.3	4	1.7	High	9/9
Reg. 2024/2690	Annex, section 13					
10. Human resources security (Article 21(2), point (i), of Directive (EU) 2022/2555)		2.4	4	1.6	High	10/10
Reg. 2024/2690	Annex, section 10					
3. Incident handling (Article 21(2), point (b), of Directive (EU) 2022/2555)		2.4	4	1.6	High	22/22
Reg. 2024/2690	Annex, section 3					
12. Asset management (Article 21(2), point (i), of Directive (EU) 2022/2555)		2.5	4	1.5	High	13/13
Reg. 2024/2690	Annex, section 12					
Incident handling		2.5	4	1.5	High	4/4
NIS 2 Directive	Article 21(2)(b)					
Security in acquisition, development and maintenance of systems		2.5	4	1.5	High	4/4
NIS 2 Directive	Article 21(2)(e)					
Cryptography and encryption		2.5	4	1.5	High	2/2
NIS 2 Directive	Article 21(2)(h)					
Human resources, access control and asset management		2.5	4	1.5	High	4/4
NIS 2 Directive	Article 21(2)(i)					
1. Policy on the security of network and information systems (Article 21(2), point (a) of Directive (EU) 2022/2555)		2.5	4	1.5	High	8/8
Reg. 2024/2690	Annex, section 1					
5. Supply chain security (Article 21(2), point (d), of Directive (EU) 2022/2555)		2.5	4	1.5	High	8/8
Reg. 2024/2690	Annex, section 5					
8. Basic cyber hygiene practices and security training (Article 21(2), point (g), of Directive (EU) 2022/2555)		2.5	4	1.5	High	8/8
Reg. 2024/2690	Annex, section 8					
Business continuity and crisis management		2.8	4	1.3	Medium	4/4
NIS 2 Directive	Article 21(2)(c)					
Assessing the effectiveness of measures		3.0	4	1.0	Medium	3/3
NIS 2 Directive	Article 21(2)(f)					

Area	Current	Target	Gap	Priority	Completion
Multi-factor authentication and secured communications	3.0	4	1.0	Medium	3/3
NIS 2 Directive	Article 21(2)(j)				

Legal risk register — obligations not fulfilled

Obligation	Basis	Deadline	Penalty exposure
If the entity is a DNS service provider, TLD name registry, cloud, data centre, CDN or managed service provider, online marketplace, search engine or social networking platform — has it submitted the additional data under Article 27, including the address of its main establishment in the Union? Registration data for the list of entities	NIS 2 Directive Article 27(2)	—	Article 34
If the entity is a trust service provider — does it report significant incidents within 24 hours of becoming aware? Reporting significant incidents	NIS 2 Directive Article 23(4), second subparagraph	24 godziny	Article 34
Is the essential entity prepared for a security audit carried out by the authority or an independent body, at its own cost? Readiness for supervisory measures	NIS 2 Directive Article 32(2) (b–c i)(3)	—	Article 32(4)

Statutory calendar

Date	Event	Basis		Remaining
16/01/2023	Entry into force of the NIS 2 Directive On the twentieth day following publication in the Official Journal.	NIS 2 Directive	Article 45	in force
17/10/2024	Deadline for transposing the Directive By this date Member States were to adopt and publish national provisions.	NIS 2 Directive	Article 41(1)	in force
18/10/2024	Application of national provisions and repeal of NIS 1 From this date Member States apply the implementing provisions; Directive (EU) 2016/1148 is repealed.	NIS 2 Directive	Article 41(1) and Article 44	in force
07/11/2024	Application of Regulation (EU) 2024/2690 The Implementing Regulation applies directly from the twentieth day following publication.	Reg. 2024/2690	Article 16	in force
17/04/2025	List of essential and important entities By this date Member States establish the list; entities submit registration data to the authorities.	NIS 2 Directive	Article 3(3 and 4)	passed
17/10/2027	First review of the Directive by the Commission The Commission reviews the functioning of the Directive and submits a report.	NIS 2 Directive	Article 40	376 days

Thresholds for a significant incident

For the roles below the thresholds follow directly from Regulation (EU) 2024/2690 and apply from 7 November 2024.

Data centre service providers (Article 8)

The strictest set of thresholds in the whole Regulation. For data centres there is NO 30-minute threshold and NO 5 % / 1 million users threshold — every complete unavailability of the service and every breach of physical access is a significant incident.

- **a)** The data centre service is completely unavailable — NO time threshold.
- **b)** The availability of the service is limited for more than 1 hour — NO percentage or user-count threshold.
- **c)** The integrity, confidentiality or authenticity of data is compromised as a result of suspectedly malicious action.
- **d)** Physical access to the data centre operated by the provider is compromised.

Horizontal criteria (Article 3(1)) — meeting one is enough

- **a)** Financial loss — The financial loss incurred or possible exceeds EUR 500 000 or 5 % of the entity's total annual turnover in the preceding financial year — whichever is lower.
- **b)** Leak of trade secrets — The incident has caused or is capable of causing the exfiltration of trade secrets within the meaning of Article 2, point (1) of Directive (EU) 2016/943.
- **c)** Death of a natural person — The incident has caused or is capable of causing the death of a natural person.
- **d)** Considerable damage to health — The incident has caused or is capable of causing considerable damage to a natural person's health.
- **e)** Unauthorised access — A successful, suspectedly malicious and unauthorised access to network and information systems occurred which is capable of causing severe operational disruption.
- **f)** Recurring incidents — The incident meets the criteria of Article 4: it has occurred at least twice within six months, the incidents have the same apparent root cause and collectively meet the financial loss criterion of Article 3(1)(a). They are considered collectively to be one significant incident.
- **g)** Sector-specific criterion — The incident meets at least one of the sector-specific criteria set out in Articles 5 to 14 of the Regulation.

Electronic communications activity — thresholds are set by national law. Regulation (EU) 2024/2690 does not apply to providers of public electronic communications networks and services. For them, the thresholds for a significant incident are set by national law (Article 23(11) of the Directive) — this module does not know them, so it gives no figures.

History and progress

No snapshot has been saved yet. A snapshot freezes the current state of the assessment together with the date, so that subsequent reports show progress.

[Save the first snapshot](#)

Compliance assessment against Directive (EU) 2022/2555 of the European Parliament and of the Council (NIS 2) and Commission Implementing Regulation (EU) 2024/2690 — common module for countries whose national law module is not yet ready.

It does not constitute legal advice; all data stay in this browser or locally on your computer.

Version 1.2.0 · 6 October 2026 · [changelog](#)